

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF WEST VIRGINIA**

CRYSTAL GOOD, *et al.*,

Plaintiffs

v.

AMERICAN WATER WORKS COMPANY,
et al.,

Defendants.

Civil Action No. 2:14-CV-01374
Hon. John T. Copenhaver

Consolidated with:
Civil Action No. 2:14-CV-13164
Civil Action No. 2:14-CV-11011
Civil Action No. 2:14-CV-13454

**PLAINTIFFS’ MOTION IN LIMINE TO EXCLUDE DEFENDANTS’ INTRODUCTION
OF EVIDENCE OF FREEDOM’S FAULT AND MOTION TO DISALLOW
APPORTIONMENT OF FAULT TO FREEDOM AT TRIAL**

By this motion, Plaintiffs request an order excluding evidence of any negligence or fault of Freedom Industries, Inc. (“Freedom”) as irrelevant as a matter of law in all aspects. Under established West Virginia law, the fault of Freedom may not be considered as the jury reaches its findings regarding Defendants’ comparative negligence. Thus, any arguments, comments or evidence regarding the negligence of Freedom or its principals has no place in this trial.

Under West Virginia law, in order for the jury to reach an appropriate result when applying comparative negligence rules, a plaintiff’s contributory negligence (if any) must be ascertained in relation to all of the parties whose negligence contributed to an accident. *Bowman v. Barnes*, 168 W. Va. 111, syl. 3 (1981). However, the Supreme Court has made clear that the *Bowman* rule applies “only when a plaintiff has been contributorily negligent.” *Rowe v. Sisters of the Pallottine Missionary Soc’y*, 211 W. Va. 16, 24 (2001) (negligence of plaintiff “in causing his or her injury is ascertained in relation to all other tortfeasors”) (emphasis added). Here, with

respect to the contamination of the Plaintiffs' water, it is indisputable that there is no cognizable issue raised as to whether plaintiffs were contributorily negligent. Thus, in determining Defendants' fault for the contamination event, any argument, instruction or potential finding regarding Freedom's contribution to the contamination event is plainly "improper." *Rowe*, 211 W. Va. at 25.

Consistent with these long established rules, the Supreme Court of Appeals for West Virginia recently confirmed in *Modular Bldg. Consultants of West Virginia, Inc. v. Poerio, Inc.*, 235 W. Va. 474 (2015), that a jury may assess fault of "all" parties (including absent parties) only "where issues of plaintiff's contributory negligence and that of joint tortfeasors' comparative fault converge." *Modular*, 235 W. Va. at 484-85. In *Modular*, the plaintiff was the non-party, having settled just prior to trial on defendant's third-party claim for contribution and indemnification, and there was "ample evidence" of his comparative negligence, *Modular*, 235 W. Va. at 485, and thus it would have been "patently inequitable" to hamstring the third-party defendant by stripping it of its ability to advance its primary defense, that the plaintiff's fault of 50% or more would bar recovery in contribution against the other defendant. *Id.*

Under applicable common law, the defense of contributory negligence still applies if a plaintiff is more than 50% at fault, and fault is apportioned between the plaintiff and any defendants if the plaintiff is less than 50% at fault. *Bradley v. Appalachian Power Co.*, 163 W. Va. 332, 345, 256 S.E.2d 879, 887 (1979) ("Our comparative negligence rule still bars the substantially negligent plaintiff from obtaining a recovery, but it does permit the plaintiff who is more than slightly at fault to recover his injuries diminished by his percentage of contributory negligence."). However, under the common law, defendants remained jointly and severally liable to plaintiffs, but with a right of contribution against one another. *Id.*

The common-law rule of joint and several liability was modified by the legislature in enacting W. Va. Code § 55-7-24(a)(1) (2005) (repealed 2015),¹ which provides: “In any cause of action involving the tortious conduct of more than one defendant, the trial court shall [i]nstruct the jury to determine . . . the total amount of damages sustained by the claimant and the proportionate fault of each of the parties in the litigation at the time the verdict is rendered.” Thus, neither the statute in effect for this case nor the common law against which it was enacted permits consideration of Freedom’s fault—unless the plaintiff’s own fault is an issue in the case, *Bowman*, 168 W. Va. 111, syl. 3, an exception that does not apply to the instant trial.²

Here, as detailed in Plaintiffs’ Trial Plan, Phase I of the class trial will address the critical jury questions relating to Defendants’ want of due care in the events that caused the contamination of Plaintiffs’ water and do not present any issue of comparative fault of the Plaintiffs. This Court is in agreement, having previously found that given “the time frame and events for which issue certification is actually sought,” it is “inconceivable that a person or business could be complicit in the events leading to the [Do Not Use] order and their deprivation of the use of clean water, for which Plaintiffs seek a class recovery.” Memorandum Opinion and Order dated October 8, 2015 [Doc. 470] at pp. 45-46 n. 19. Thus, as the standards articulated in

¹ W. Va. Code § 55-7-24(a)(1) was in effect at the time of the harm and the time of the filing of the instant class action, and therefore governs this case.

² Plaintiffs note that in the case of *Landis v. Hearthmark, LLC*, 232 W. Va. 64, 74–75, 750 S.E.2d 280, 290–291 (2013), the West Virginia Supreme Court held that the jury could consider and apportion the fault to the parents of the plaintiff, a minor child, even though parents are immune at common law from suit by their minor child, and therefore the parents were not first-party defendants. However, this holding is consistent with the common law, which expressly permits the fault of a minor child plaintiff’s parents to be raised and tried as a defense. *See id.*, 232 W. Va. at 74–75, 750 S.E.2d at 290–291. Also, because the parents were sued as third-party defendants by one of the defendants, the Supreme Court determined that they were “parties” under Section 55-7-24(a)(1), and therefore the statute did not prevent apportionment of their fault.

West Virginia authorities culminating with *Modular* apply here, there is no common law rule supporting the jury's consideration of Freedom's negligence in Phase I of the class trial, and it is not supported by the plain language of Section 55-7-24. Simply put, defendants may not point to the "empty chair" under the facts of this case in accordance with the Phase I issues trial. *Bowman*, 168 W. Va. at 111 syl 3; *Rowe*, 211 W. Va. at 25; *Modular*, 235 W. Va. at 484.

The exclusion of Freedom's negligence, if any, is appropriate for the additional reason that it is simply irrelevant as a matter of law to the duty owed by West Virginia American Water Company, Inc. ("WVAW") to protect its water source and to prevent contamination from whatever external threat exists or develops to jeopardize that water source, including those threats posed by intentional acts of mayhem.³ The duty to identify threats to and prevent contamination of public water systems belongs to public water systems – not to riparian landowners who happen to be upstream. Freedom's actions are wholly irrelevant to the determination of whether WVAW breached this duty. WVAW has not identified any standard or evidence that the common law duty to use reasonable care and the industry standards of care requiring water companies to be prepared for unexpected events does not encompass unexpected events resulting from intentional or negligent acts of non-parties. At the very least, WVAW should be precluded from arguing that Freedom's negligence excuses their lack of preparedness.

Moreover, there also can be no doubt that Freedom's negligence has zero bearing on the issue of whether WVAW breached its contracts with its customers or whether the breach should

³ There are, for example, very specific federal requirements that water companies must plan and prepare for intentional criminal acts. See 42 U.S.C. §300i2(a) (Federal Safe Drinking Water Act provision requires community water systems to evaluate "vulnerability of its system to a terrorist attack or other intentional acts intended to substantially disrupt the ability of the system to provide a safe and reliable supply of water"). WVAW itself has also acknowledged this responsibility. For example, WVAW describes the scope of its January 22, 1980 "Vulnerability Analysis of Contamination of Water Supply Source," CGC0020985 at 0002, as, "Steps to take in the Event of Chemical Spills, Perpetrated or Inadvertent, in Elk River Above W. Va. Water Company's Kanawha Valley District Treatment Plant."

be excused under the doctrine of impracticability.⁴ None of the elements WVAW must prove supports any consideration of whether Freedom is at fault or to what degree Freedom is at fault. The “event” that allegedly made WVAW’s performance impracticable was the spill itself, the extent and duration of it, and perhaps the allegedly incorrect information it first received about it. Whether Freedom was negligent has no bearing.⁵ In the event that Freedom’s fault or its degree of fault is determined to be relevant to some other claim or defense, Plaintiffs reserve the right to seek at the appropriate time a limiting instruction whereby the jury will be instructed not consider evidence of Freedom’s negligence in consideration of the breach of contract issue.

DATED: October 4, 2016.

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⁴ A party seeking to be excused from a contractual performance on the grounds that a supervening event has prevented the performance must prove four elements: (1) the event made the performance impracticable; (2) the nonoccurrence of the event was a basic assumption on which the contract was made; (3) the impracticability resulted without the fault of the party seeking to be excused; and (4) the party has not agreed, either expressly or impliedly, to perform in spite of impracticability that would otherwise justify his nonperformance. *See* syl. 1, *Gaddy Engineering Co. v. Bowles Rice McDavid Graff & Love, LLP*, 231 W. Va. 577, 746 S.E.2d 568 (2013); syl. 2, *Waddy v. Riggleman*, 216 W. Va. 250, 606 S.E.2d 222 (2004).

⁵ Whether information that WVAW allegedly received from Freedom was accurate or sufficient may have some relevance, but not whether or to what extent Freedom was or was not at fault in providing information. To put the matter into perspective, if a tornado damaged the KVTP and several large storage tanks, WVAW might have the makings of a valid impracticability defense for its failure to provide potable water. The accuracy of the actual warnings by the national weather service provided in advance of the tornado might be relevant to that defense. The national weather service’s degree of fault or duty in providing accurate or sufficient or timely warnings would not be. On the other hand, if a truck driver drove his truck into a single small storage tank, that fact probably would not excuse WVAW’s failure to provide water to the entire system for days, even if the truck driver’s conduct was really negligent, or, if the truck driver were intoxicated at the time, criminally negligent. The sole question is whether the situation, as it unfolded, and given the information that WVAW received and had, meets the elements of an impracticability excuse. The degree of fault of a third party in bringing the event to pass is irrelevant. At the very least, WVAW should be precluded from arguing that Freedom’s degree of fault is relevant to whether their breach of contract should be excused under the doctrine of impracticability.

By Counsel,

/s/ Van Bunch

Van Bunch, Esquire (W.Va. Bar No. 10608)
Bonnett Fairbourn Friedman & Balint PC
2325 E. Camelback Road, Suite 300
Phoenix, Arizona 85016
Telephone: (602) 274-1100
Facsimile: (602) 274-1199
vbunch@bffb.com

Kevin W. Thompson, Esquire (W.Va. Bar No. 5062)
Thompson Barney Law Firm
2030 Kanawha Boulevard, East
Charleston, West Virginia 25311
Telephone: (304) 343-4401
Facsimile: (304) 343-4405
kwthompsonwv@gmail.com

Stuart Calwell, Esquire (WVSB# 0595)
Alex McLaughlin, Esquire (WVSB# 9696)
D. Christopher Hedges, Esquire (WVSB# 7894)
THE CALWELL PRACTICE, LC
Law and Arts Center West
500 Randolph Street
Charleston, West Virginia 25302
Telephone: (304) 343-4323
Facsimile: (304) 344-3684 (facsimile)
scalwell@calwelllaw.com

Counsel for Plaintiffs

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CERTIFICATE OF SERVICE

The undersigned counsel for Plaintiffs here by certifies that on October 4, 2016, the foregoing “Plaintiffs’ Motion in Limine to Exclude Defendants’ Introduction of Evidence of Freedom’s Fault and Motion to Disallow Apportionment of Fault to Freedom at Trial” was served on all counsel of record through the CM/ECF system which will send notification of the filing to all counsel of record.

Bonnett Fairbourn Friedman & Balint PC

/s/ Van Bunch

Van Bunch, Esquire (WVSB# 10608)
2325 E. Camelback Road, Suite 300
Phoenix, Arizona 85016
Telephone: (602) 274-1100
Facsimile: (602) 274-1199
vbunch@bffb.com